

		Lastly, Plaintiff brings a claim for unfair competition, pursuant to Business & Professions Code section 17200, which prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising....” (Bus. & Prof. Code, § 17200.) “Where a UCL Claim is derivative of another claim that fails as a matter of law, the UCL claim must similarly fail.” (Nein v. HostPro, Inc. (2009) 174 Cal.App.4th 833, 841.) Defendants demur to the Third Cause of Action, on the basis it is derivative of all remaining claims. (Demurrer: 7:2-4.) In response, Plaintiff concedes the derivative nature of this claim, but nonetheless asserts that “the first, second, and fourth causes of action are not shown to be barred as a matter of law on the face of this Complaint....” (Opposition: 6:3-7.) As the Court has sustained the demurrer to all remaining claims, the demurrer is likewise sustained, as to this derivative claim. While Plaintiff has not specified how he will amend to state a claim and, in particular, has not identified a legal basis for avoiding the statute of limitations, leave to amend is GRANTED, as this is his first attempt at pleading. (See Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 688; See also Amy’s Kitchen, Inc. v. Fireman’s Fund Ins. Co. (2022) 83 Cal.App.5th 1062, 1073.)
104	Craig v. SageKitchen, LLC, 2025-01526209	MOTION TO COMPEL ARBITRATION TENTATIVE FORTHCOMING
105	Elias v. Jensen, 2020-01139897	MOTION FOR RECONSIDERATION – CONTINUED On July 28, 2026, Defendants filed a Motion for Order Requiring Plaintiff to Furnish Security Pursuant to Vexatious Litigant Statute. Pursuant to CCP §391.6, the filing of this motion automatically stays the entirety of the action until a specified time after the motion is heard.